

SENATE No. 3182

The Commonwealth of Massachusetts

PRESENTED BY:

Kelly A. Dooner and Norman J. Orrall

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing the city of Taunton to utilize certain areas of conservation land for road improvements.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Kelly A. Dooner</i>	<i>Third Bristol and Plymouth</i>	
<i>Norman J. Orrall</i>	<i>12th Bristol</i>	<i>7/17/2026</i>
<i>Lisa Field</i>	<i>3rd Bristol</i>	<i>7/19/2026</i>

SENATE No. 3182

By Mrs. Dooner and Mr. Orrall of Lakeville, a joint petition (accompanied by bill, Senate, No. 3182) of Kelly A. Dooner and Norman J. Orrall (with approval of the mayor and city council) for legislation to authorize the city of Taunton to utilize certain areas of conservation land for road improvements. Municipalities and Regional Government. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the city of Taunton to utilize certain areas of conservation land for road improvements.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding any general or special law to the contrary, the city of
2 Taunton, acting by and through its conservation commission, municipal council, and mayor, may
3 take the necessary actions to transfer the following certain parcels of land held for conservation
4 purposes and under the care, custody and control of the conservation commission to the care,
5 custody and control of the mayor and municipal council for improvements to the public way
6 known as Scadding Street: Parcel No. E-5, containing approximately 6,891 square feet; and
7 Parcel No. D-2, containing approximately 586 square feet, all as shown on that certain set of
8 road improvement plans entitled “Plan of Land in the City of Taunton Bristol County Showing
9 Location of Permanent and Temporary Easements Taken by the City of Taunton” prepared by
10 Nitsch Engineering, dated March 25, 2024, as planned under Massachusetts department of
11 transportation Project No. 608616. Prior to completing said transfer, the city of Taunton and the

Massachusetts department of transportation may make minor modifications to the plans to carry out the purposes of this Act.

SECTION 2. Notwithstanding any general or special law to the contrary, the city of Taunton, acting by and through its conservation commission, municipal council, and mayor, may take the necessary actions to transfer the following certain parcels of land held for conservation purposes and under the care, custody and control of the conservation commission to the care, custody and control of the mayor and municipal council for improvements to the public way known as Rhode Island Road (also known as state highway route 79): Parcel T-X-1, containing approximately 42 square feet; and Parcel T-D-2, containing approximately 2,297 square feet, all as shown on that certain set of road improvement plans entitled “Massachusetts Department of Transportation Highway Division Plan and Profile of Route 79 (Myricks St/Rhode Island Rd) in the Town/City of Lakeville and Taunton Plymouth County and Bristol County Preliminary Right of Way Plans”, prepared by BETA Group, Inc., dated November 4, 2024, as planned under Massachusetts department of transportation Project No. 606715. Prior to completing said transfer, the city of Taunton and the Massachusetts department of transportation may make minor modifications to the plans to carry out the purposes of this Act.

SECTION 3. In consideration of the transfers of land pursuant to sections 1 and 2, the city of Taunton and to ensure no net loss of land subject to Article XCVII of the amendments to the constitution of the commonwealth, acting by and through its mayor and municipal council, shall transfer the parcel of city-owned land located on Fisher Street, shown on city of Taunton assessor maps as Parcel 64-295, said parcel being more particularly shown and described as Parcel 12 on a certain plan of land entitled “Plan of Land Taunton, Mass. Owned by: Quequechan Development Corporation” dated May 2, 1972, Scale 1”=40’, recorded with the

Bristol County Northern District Registry of Deeds in Book 131, Page 26, owned by the City of Taunton under Final Decree in Tax Lien Case dated February 18, 1984, recorded with said Registry in Book 2448, Page 81, said parcel containing approximately 23,858 square feet of land and presently held for general municipal purposes, to the care, custody and control of the conservation commission for the city of Taunton for conservation purposes. In the event that an independent appraisal of the fair market value or value in use, whichever is greater, determines that the monetary value of said parcel is not equal or greater than the fair market value or value in use, whichever is greater, of the land described in Section 1 and Section 2 of this act, then the difference in monetary value shall be deposited into a segregated account solely for the purposes of acquiring land for conservation purposes. Said parcel conveyed to the conservation commission of the city of Taunton pursuant to this section shall be subject to Article XCVII of the Amendments to the Constitution of the Commonwealth.

SECTION 4. This act shall take effect upon passage.